

**IN THE COURT OF THE XI METROPOLITAN MAGISTRATE
ESPLANADE, MUMBAI
C.C. NO. 1847/SS/2026**

EVIDENCE AFFIDAVIT UNDER SECTION 145(1), NI ACT

I, Ritesh Ahluwalia, aged about 38 years, residing at Flat 1102, Oberoi Splendor, Jogeshwari East, Mumbai - 400060, do hereby solemnly affirm and state as follows:

Do hereby solemnly affirm and state as follows:

1. I am the Complainant above named and am well conversant with the facts of the case.
2. I state that I have instituted the present complaint under Section 138 read with Section 142 of the Negotiable Instruments Act, 1881 against the Accused, and I tender this affidavit as my evidence-in-chief under Section 145(1) of the said Act, in lieu of examination-in-chief in open Court.
3. I state that in or about August 2024, the Accused, who was known to me, approached me seeking a friendly loan of Rs. 36,00,000 for his personal requirements, representing that he would repay the same together with interest within a reasonable time.
4. I state that acting upon the said request, I advanced the sum of Rs. 36,00,000 to the Accused, and the terms of the loan were reduced to writing in a Loan Agreement cum Promissory Note dated 10.08.2024, which I now produce and tender in evidence and pray may be marked as Exhibit "P-1".
5. I state that the Accused paid me a sum of Rs. 1,08,000 on 10.11.2024 towards interest on the loan, which payment I say amounts to an unequivocal acknowledgement of the debt by the Accused.
6. I state that despite the said part-payment, the Accused thereafter failed and neglected to repay the principal amount or any further interest, notwithstanding repeated requests made by me.
7. I state that towards discharge of his liability, the Accused issued to me Cheque No. 004821 dated 05.09.2025 drawn on Kotak Mahindra Bank, Andheri West Branch for Rs. 36,00,000, which cheque I now produce and tender in evidence and pray may be marked as Exhibit "P-2".
8. I state that I presented the said cheque for encashment through my banker within the period of its validity.
9. I state that the said cheque was returned unpaid by the drawee bank vide Return Memo No. RM/KMB/2025/6741 dated 10.09.2025 with the remark 'Funds Insufficient', which return memo I now produce and tender in evidence along with the cheque as part of Exhibit "P-2".
10. I state that upon the said dishonour, I caused a statutory notice dated 22.09.2025 to be issued to the Accused through my counsel under the proviso to Section 138 of the Negotiable Instruments Act, 1881, which notice together with its postal tracking report I now produce and tender in evidence and pray may be marked as Exhibit "P-3".
11. I state that the said notice was duly served upon the Accused, as would appear from the postal tracking report forming part of Exhibit "P-3", and that despite service of the said notice, the Accused has neither replied to the same nor made payment of the cheque amount within the statutory period of 15 days or at all.
12. I state that I have maintained a personal ledger recording the disbursement of the loan, the interest accrued thereon and the payment received from the Accused, which ledger I now

produce and tender in evidence and pray may be marked as Exhibit "P-4".

13. I state that I also produce and tender in evidence my bank statement, and pray the same may be marked as Exhibit "P-5".
14. I state that the aforesaid facts and documents establish that the cheque in question was issued by the Accused for the discharge, in whole or in part, of a legally enforceable debt, and that the presumptions under Sections 118 and 139 of the Negotiable Instruments Act, 1881 arise in my favour.
15. I state that I have suffered loss, harassment and inconvenience on account of the dishonour of the cheque and the consequent non-payment, and I am entitled to be compensated therefor in terms of the prayer made in the complaint.
16. I state that I am ready and willing to be cross-examined by the learned counsel for the Accused on the contents of this affidavit and the documents produced herewith.

VERIFICATION

The contents of paragraphs 1 to 16 above are true to my knowledge and nothing material has been concealed.

Verified at Mumbai on this the 15th day of January, 2026.

DEPONENT